

MEDIA ALERT

FOR IMMEDIATE RELEASE

Monday, July 13, 2026

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San Francisco DA Charges Sheriff's Deputy for Unlawful Touching of Woman in Custody, Vindicating a Plaintiff Who Spoke Out in County Jail Class Action

A year after she reported being violated at County Jail No. 2, and weeks after 20 women sued the City over a filmed mass strip search, the District Attorney has filed criminal charges against a sheriff's deputy. The plaintiff is available for comment from custody through counsel. The deputy is arraigned tomorrow.

SAN FRANCISCO, July 13, 2026. San Francisco District Attorney Brooke Jenkins has charged San Francisco Sheriff's Office Deputy Nanette Musto (51) with battery and assault by a public officer in connection with an incident at San Francisco County Jail No. 2, the same women's jail at the center of a federal civil rights class action brought by The Veen Firm, LLP and Bertolino Law, PC. The complaining witness in the criminal case is a plaintiff in that civil class action, according to plaintiffs' counsel.

The charges announced July 13, 2026 confirm what the women in custody said from the beginning. On July 12, 2025, while on duty at County Jail No. 2, Deputy Musto allegedly asked a female inmate whether she had surgically augmented her body and then, without permission or lawful necessity, reached out and touched the inmate's breast. The incident was captured on jail surveillance footage and left the woman humiliated and embarrassed, according to the District Attorney. Musto is charged with battery (Penal Code section 242) and one misdemeanor count of assault by a public officer (Penal Code section 149). The District Attorney's office said the matter remains an active investigation.

The criminal case arrives one year after the conduct, and only after the women filed suit. Their federal complaint, filed May 22, 2026, alleges a coordinated, supervisor-authorized pattern of suspicionless and degrading searches of women at County Jail No. 2, including a filmed mass strip search, cross-gender observation in violation of the Sheriff's own policy, denial of menstrual hygiene, and retaliation against women who complained.

"For a year, these women were told to stay quiet. Today the District Attorney confirmed what our client has said all along: a deputy criminally violated a woman inside that jail," said Elizabeth Bertolino of Bertolino Law, PC, co-lead counsel for the plaintiffs. "This is vindication. It is also just the beginning. Criminal charges against one deputy do not erase an institutional policy that put male deputies and body cameras inside a women's strip search."

"It took a lawsuit and a full year for anyone in power to take these women seriously," said Anthony Label, a partner at The Veen Firm, LLP and co-lead counsel for the plaintiffs. "Today's charges prove this was never one woman making it up, and it was never rogue conduct nobody could have seen. It happened inside a jail that broke its own rules and then punished the women who spoke up. Our client was vindicated today. The City still has to answer for the pattern."

ARRAIGNMENT TOMORROW

Deputy Nanette Musto is scheduled to be arraigned tomorrow, July 14, 2026 at 9:00 a.m. in Department 17 at the Hall of Justice, 850 Bryant Street, San Francisco. Court Number: 26016092. Counsel for the plaintiffs are available for on-camera and phone interviews before and after the arraignment.

PLAINTIFF AVAILABLE FOR COMMENT

The plaintiff who reported this incident is available for comment from custody, arranged through counsel. To request an interview, contact info@veenfirm.com or (510) 560-6731.

CASE INFORMATION

Civil case caption: *Sahagun Lopez, et al. v. City and County of San Francisco, et al.*

Court: U.S. District Court, Northern District of California, San Francisco Division

Criminal matter: People v. Nanette Musto: battery (PC 242) and assault by a public officer (PC 149); Court Number 26016092; arraignment July 14, 2026, Dept. 17, Hall of Justice.

Counsel: Elizabeth Bertolino (Bertolino Law, PC); Anthony Label and Molly Ryan (The Veen Firm, LLP)

About The Veen Firm, LLP. For more than 50 years, The Veen Firm, LLP has represented individuals in catastrophic injury and civil rights cases against institutional defendants. veenfirm.com.

About Bertolino Law, PC. Bertolino Law, PC is a San Francisco civil rights and personal injury firm representing individuals in cases involving constitutional violations, gender-based violence, and institutional misconduct. bertolinolawfirm.com.

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